

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carter Salis	Team: Squad #04	CCRB Case #: 201903442	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 04/01/2019 11:28 PM	Location of Incident: 78th Precinct Stationhouse	18 Mo. SOL 5/18/2021	Precinct: 78
Date/Time CV Reported Tue, 04/23/2019 8:21 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 04/23/2019 8:21 AM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Anicia Joseph	4556	946502	078 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Shapiro Lecorps	05255	932886	078 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Anicia Joseph	Abuse: Detective Anicia Joseph refused to provide her name to § 87(2)(b) [REDACTED]	A . Unsubstantiated
B . DT3 Anicia Joseph	Abuse: Detective Anicia Joseph failed to provide § 87(2)(b) [REDACTED] with a business card.	B . Unsubstantiated

Case Summary

On April 22, 2019, § 87(2)(b) appeared at the CCRB and filed this complaint on behalf of herself.

On April 1, 2019, at approximately 11:28 p.m., § 87(2)(b) appeared at the 78th Precinct stationhouse in Brooklyn and requested to file a criminal complaint regarding sex trafficking. Det. Anicia Joseph, of the 78th Precinct Detective Squad, appeared and told § 87(2)(b) that officers could not take her criminal complaint. § 87(2)(b) asked Det. Joseph for her name approximately fifteen times. Det. Joseph stated that her name did not matter and mumbled what seemed to be a first name (**Allegation A: Abuse of Authority, Unsubstantiated**). § 87(2)(b) requested Det. Joseph's business card and Det. Joseph failed to provide one (**Allegation B: Abuse of Authority, Unsubstantiated**).

No arrests or summonses resulted from this incident.

There is no known video footage related to this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Anicia Joseph refused to provide her name to

§ 87(2)(b)

Allegation (B) Abuse of Authority: Detective Anicia Joseph failed to provide § 87(2)(b) with a business card.

It is undisputed that § 87(2)(b) appeared at the 78th Precinct stationhouse to file a complaint. § 87(2)(b) spoke to Sgt. Lecorps at the front desk and was directed to the "124 Room," where she detailed her complaint to Police Administrative Aid (PAA) § 87(2)(b). Sgt. Lecorps requested that Det. Joseph interview § 87(2)(b) regarding her complaint. Approximately thirty minutes later, Det. Joseph appeared in the "124 Room" and spoke to § 87(2)(b) § 87(2)(g).

§ 87(2)(b) (BR 01) stated that she was speaking with PAA § 87(2)(b). Det. Joseph appeared in the "124 Room" and identified herself as a detective. Det. Joseph was dressed in business attire and not wearing anything to identify herself as an officer. Det. Joseph told § 87(2)(b) that officers would not process her complaint. § 87(2)(b) requested Det. Joseph's name approximately fifteen times. Det. Joseph stated that her name did not matter and then mumbled that sounded like a first name, although § 87(2)(b) could not recall the name that Det. Joseph mumbled. § 87(2)(b) requested a business card from Det. Joseph and Det. Joseph did not provide her business card. During her CCRB interview, § 87(2)(b) recanted and later reasserted the claim that she requested and was denied Det. Joseph's business card. PAA § 87(2)(b) was present during § 87(2)(b)'s conversation with Det. Joseph.

§ 87(2)(g)

PAA § 87(2)(b) stated that § 87(2)(b) spoke to a female detective, whose identity she did not recall. PAA § 87(2)(b) is familiar with Det. Joseph. While § 87(2)(b) was in the "124 Room," the female detective appeared and identified herself by name to § 87(2)(b). PAA § 87(2)(b) then left the "124 Room" and spoke to Sgt. Lecorps regarding § 87(2)(b)'s complaint. PAA § 87(2)(b) did not hear any officer refuse to provide their name or business card to § 87(2)(b) and § 87(2)(b) never complained to PAA § 87(2)(b) that any officer had done so.

Det. Joseph (BR 03) stated that she received a call from Sgt. Lecorps at approximately 10:00 PM. Sgt. Lecorps was working as the desk sergeant and requested that Det. Joseph interview a complainant she later learned to be § 87(2)(b). Det. Joseph appeared in the

doorway of the “124 Room” and stated, “I’m Detective Joseph. How can I help you?” Det. Joseph could not recall if she had her shield visibly displayed. § 87(2)(b) detailed her complaint of § 87(2)(b) to Det. Joseph, and refused to provide her personal address or the location of § 87(2)(b). Det. Joseph responded that, without § 87(2)(b)’s address, she could not file § 87(2)(b)’s complaint. Det. Joseph left the “124 Room” and notified Sgt. Lecorps that she had concluded her interview with § 87(2)(b). § 87(2)(b) never requested Det. Joseph’s name or business card.

Sgt. Lecorps statement (BR 04) was generally consistent with Det. Joseph’s statement. Sgt. Lecorps did not witness Det. Joseph’s conversation with § 87(2)(b).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** and **Allegation B** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been party (BR 05).
- Detective Anicia Joseph has been a member of service for eleven years and has been a subject in five other CCRB complaints and six allegations, of which zero were substantiated.

○ § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- On July 24, 2019, a FOIL request was submitted to the New York City Comptroller’s Office to determine whether a Notice of Claim had been filed in relation to this complaint. The requested information will be included in the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: Squad 4

Investigator:	_____	Investigator Carter Salis	07/25/2019
	Signature	Print Title & Name	Dates

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date

